

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-19

PELOTON INTERACTIVE, INC.,

COMPLAINANT,

v.

FLEXPORT INTERNATIONAL LLC

RESPONDENT.

**COMPLAINANT PELOTON INTERACTIVE, INC.’S
FIFTH MOTION FOR CONFIDENTIAL TREATMENT**

Complainant Peloton Interactive, Inc. (“Peloton”) moves pursuant to Rules 5(b) and 69 of the Federal Maritime Commission’s Rules of Practice and Procedure and the May 13, 2024 Initial Order in this proceeding (“Initial Order”) for confidential treatment of Peloton’s Status Report and Attachment No. 3 thereto.

On December 13, 2024, Peloton and Flexport entered a Stipulation of Confidentiality (“Confidentiality Agreement”), which provides among other things, that “[t]he entire contents of any deposition transcript shall be treated as Confidential Material for a period of thirty (30) days after the transcript of said deposition is available, regardless of whether any Party has so designated the transcript. Confidential Material which is to be filed with the ALJ or Commission, or materials containing, reproducing, incorporating or otherwise disclosing Confidential Material shall be filed and labeled in accordance with 46 CFR §502.5.”

Peloton’s Status Report includes deposition testimony from Flexport’s expert witness,

Gary Kardian. Pursuant to the Confidentiality Agreement, this testimony is designated as confidential through July 5, 2025. Unless a party designates specific portions of the testimony for continued confidential treatment, the material will no longer be considered confidential as of July 6, 2025, and can be filed publicly. Peloton will update the motion accordingly to reflect any such designations.

Pursuant to Commission Rule 5(b), a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating “the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. § 502.5(b). Good cause exists to maintain the confidentiality of the deposition testimony in accordance with the terms of the Confidentiality Agreement.

Pursuant to Rule 5(b), Peloton will file both confidential and public versions of the Status Report.

CONCLUSION

For the foregoing reasons, Peloton respectfully requests that the Presiding Officer grant Peloton’s motion for confidential treatment.

Dated: June 6, 2025

Respectfully Submitted,

HOLLAND AND KNIGHT LLP

Christopher R. Nolan
Allison N. Skopec
787 7th Street
New York, NY 10019
Telephone: (212) 513-3200
chris.nolan@hklaw.com
Allison.skopec@hklaw.com

By: /s/Kristine O. Little
Gerald A. Morrissey III
Kristine O. Little
Allison Luzwick
800 17th Street N.W., Suite 1100
Washington, D.C. 20006
Telephone: (202) 469-5497
Telephone: (202) 469-5549
gerald.morrissey@hklaw.com
kristine.little@hklaw.com
allison.luzwick@hklaw.com

*Counsel to Complainant
Peloton Interactive, Inc.*

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

Andrew R Spector, Esq.
Robert M. Borak, Esq.
3250 Mary Street, Suite 405
Miami, FL 33133
Tel: (305) 537-2006
Fax: (305) 537-2001
andrew.spector@spectorrubin.com
robert.borak@spectorrubin.com

*Counsel for Respondent,
Flexport International LLC*

Executed: June 6, 2025

/s/ Kristine O. Little
Kristine O. Little